

24SMCV00593 24SMCV00593

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The court is disappointed.

This hearing is the latest in a series of hearings arising from a startling lapse of ethics by defense counsel.

The court has already stated that sanctions will be awarded to plaintiff for the extra work that was required by virtue of defendants' misconduct. Plaintiff's bill was, it is fair to say, huge. Multiple times greater than a discovery sanction in even atypical cases.

The reason is that plaintiff's counsel included fees relating to the motion to disqualify defense counsel based on defense counsel's false statement as to who their client was and also for plaintiff's work to prepare FSC materials because defense counsel would not participate. The court asked the parties to discuss the numbers and try to reach an agreement.

But it appears that the parties have made no effort to discuss this. Defendants, while saying that they take the issues seriously, do not, at least in the court's view. The DQ motion arose directly from defendants' misconduct in purporting to represent a client that they did not represent—something that they still claim was just an “oops.”

As the court has previously stated, that conduct—and other misconduct detailed in prior orders—is sanctionable under both the Discovery Act and CCP sections 128.5 and 128.7.

There is absolutely no justification for purporting to represent a client that one does not represent. And the objections made on behalf of the non-client were in patent bad faith—which warrants not only a discovery sanction, but also a 128.7 sanction that is designed to punish. For example, defendants objected to terms as vague and ambiguous that were not even used in the discovery request at issue.

Defendants objected based on a lack of consumer record notice although the production did not call for such records.

(That is important because, once made, it subjects the producing party to jeopardy if documents are produced anyway.)

Defendants seem to not understand that the court takes this seriously. They claim that they are

sorry, but other than put into place calendaring procedures that have been proven to be ineffective, they have done absolutely nothing to convince the court that they understand the gravity of the situation or have done anything to ensure that this does not happen again.

For example, they have taken no ethics courses, they have made no offers to compensate plaintiff for the extra time and expense to which they put plaintiff due to their bad behavior, and other than the ineffective calendaring system the court has seen nothing put into place to ensure that this sort of problem does not happen again. As to payment of sanctions, even if the parties cannot agree on a number that is acceptable to both sides, it appears that defendant's counsel's position is that the number should be zero, because that is all that counsel has offered to pay unconditionally.

Plaintiff, for its part, has lumped in the entire trial preparation costs. That is to some extent not surprising. Defendants blew off the FSC, forcing plaintiff to go it alone.

Defendants state that this work would have had to be done anyway. The court agrees, and the court is inclined to take this as binding on both parties.

That means that plaintiff cannot recover for the FSC work, and it means that defendants have conclusively joined in plaintiff's FSC papers and stipulate to those documents—including witness lists, exhibit lists (and the admissibility of the exhibits), jury instructions, and everything else. If the court is mistaken about defendant's position, then defendant's conclusion makes no sense. (Although even then, the court cannot say that 100% of the FSC work was useless.)

Plaintiff, for its part, has made no effort to segregate these fees or try and figure out how much of the work is truly bound for the circular file if defendants are allowed to engage in the FSC process.

At this point, no one seems to care about the case or the merits. Defendants want to sweep this under the rug and hope to get away with minimal monetary sanctions. For example, as stated above, the court notes that defendants have made no effort to consider what an appropriate sanction

would be and simply pay it. It would be a concession that sanctions are appropriate—but even the “oops” defense concedes that much. Instead, defendants continue to act as if this is just not a big deal. Plaintiffs seem to try and use this as a profit center rather than what it was designed to be.

Under the circumstances, the court might need to report defense counsel to the bar. The court does not do this lightly. In fact, the court believes that this might be the first time it has done so. But counsels' past conduct is inexcusable, and the apparent failure of counsel to understand the seriousness of the problem and take responsibility for it in a meaningful way means that the court cannot be confident that defendants' behavior will not repeat in this or another case. The court is surprised that it has come to this pass; frankly, the court assumed that defendants would take action that demonstrates that it is serious when a named partner and managing partner sign documents in bad faith and without so much as reading the document. But actions speak louder than words, and defense counsel has taken no action to demonstrate that they understand the serious nature of the problem.

Therefore, as to the discovery sanctions, the court will ask plaintiff's counsel to separate out those sanctions that relate to discovery alone. The court will review the new numbers and determine if the court agrees that the number is correct. As to the motion to disqualify, the court is inclined to grant sanctions as to that amount under CCP sections 128.5 and 128.7. If defendants want an opportunity to oppose that, the court will discuss it, but the court thinks defendants have had plenty of opportunity. The fact is that plaintiff believed that it had grounds to seek disqualification because defense counsel falsely stated that it represented a client that plaintiff believed created a conflict. The fact that defense counsel in fact did not represent that client notwithstanding the repeated statements to the contrary in the document (including right below the signature line) does not mean that plaintiff's motion was unjustified when made. As to sanctions relating to the FSC, the court is inclined to DENY them in light of defendant's apparent agreement that plaintiff's FSC materials will govern.